

Hearing: Motion to Compel Compliance with Discovery Order

Date: July 22, 2026

Ron Bochner (Plaintiff) filed this action on December 31, 2024. The Second Amended Complaint was filed on October 30, 2025. On December 24, 2025, the Court granted Plaintiff's motion to compel Defendant The Liberty Trust (TLT) to produce documents and to pay sanctions of \$60. On January 2, 2026, the Court entered an order requiring Defendant to produce responsive documents within 10 days of service of the order and to pay \$60 in monetary sanctions within 30 days of service of the order (Order).

The Order was served on TLT on January 20, 2026. (Declaration of Ron Bochner (Bochner Dec.), ¶ 1.) TLT has not complied with the Order by producing documents or paying sanctions. (Bochner Dec., ¶¶ 6, 7.) Plaintiff identifies the responsive documents TLT has not produced such as Plaintiff's communications with TLT. (Bochner Dec., ¶ 6.)

Plaintiff seeks an order compelling TLT and its attorneys to comply with the Order and pay an additional \$4,060.00 in sanctions. Notice of motion was properly served on March 24, 2026. No opposition has been filed.

On February 2, 2026, Plaintiff associated attorney Timothy Reed as co-counsel. Mr. Reed submits a declaration that his billing rate is \$400 per hour, and he spent 4 hours researching and drafting the subject motion and expects to spend 4 hours reviewing the opposition and researching and drafting a reply. Mr. Reed also estimates he will spend 2 hours preparing for and attending the hearing.

"The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (Code Civ. Proc., § 2023.030, subd. (a).) "[I]f a party fails to obey an order compelling further response, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of, or in addition to, that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)." (Code Civ. Proc., § 2031.310, subd. (i).)

The Court finds that Plaintiff has incurred attorney's fees for Mr. Reed's work on the motion, but that only 5 hours will be awarded as sanctions because no opposition has been filed.

TLT is ordered to produce all responsive documents within twenty days (20) of service of notice of this Court's order, and Plaintiff is awarded \$2,060.00 in monetary sanctions against TNT and its counsel Lisa D. Collinson, Adam Wright and the firm of Collinson|Greco, jointly and severally, to be paid within twenty days (20) after service of notice of this Court's order.

Plaintiff shall serve notice.